

representation by the landlord about condition of the premises was not justifiable.

In the SAC, plaintiffs add little in the way of specific additional facts that would elevate the 2023-2024 moisture and mold issues to fraud or misrepresentation issues as far back as 2014.

While plaintiffs allege that defendant misrepresented the problem was “resolved and that the Subject Premises were habitable,” they admit to moving out because the problem persisted. This demonstrates a lack of reliance, not its existence.

The SAC fails to sufficiently allege the misrepresentations, as well as the how, when, where, and by what means they were tendered. The pleading must answer each of these questions for each specific representation alleged. Because the basis on which fraud is alleged is unclear, the cause of action is also uncertain.

The eighth cause of action for negligent misrepresentation is subject to the same analysis because the standard for pleading negligent misrepresentation only differs from fraud in that it does not require knowledge of falsity. (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1252.)

The demurrer to the seventh and eighth causes of action is **sustained**.

IV. Motion to Strike

The Court *may*, upon a motion to strike by defendant: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint, or from a matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a).) In ruling on motion to strike, courts do not read allegations in isolation, but rather as a whole, all parts in their context, assuming their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Defendant landlord moves to strike paragraphs 126, 127, 128, 129, and 130 of the SAC on the basis that they violate Code of Civil Procedure, § 425.10 (b), which states that “the amount demanded shall not be stated” in a complaint for personal injury or wrongful death.

Plaintiffs, in response, argue about punitive damages and whether the SAC contains sufficient facts to justify them. They mention only once, in a conclusory statement, that “the challenged prayer allegations are entirely proper.” The arguments are not on point and are irrelevant to whether a plaintiffs are statutorily prohibited from mentioning specific dollar amounts in the SAC’s prayer for relief. It appears such specific dollar amounts are improper.

Accordingly, the motion to strike is **granted** without leave to amend.

14. 9:00 AM CASE NUMBER: C25-00110

CASE NAME: MARLON ROBINSON VS. SAMMY MIZIRAWI

HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 2ND AMENDED COMPLAINT

FILED BY: MIZIRAWI, SAMMY

TENTATIVE RULING:

Please see Line 13.